Ex Tempore

CHIDO ERICA FELICITY MATEWA
versus
MAKONI RURAL DISTRICT COUNCIL

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 12 and 16 March 2026

Opposed Application

R.C Muchenje, for the Applicant
M. N Garakara, for the Respondent

DEME J: The Applicant approached this court seeking the reinstatement of the matter in case number HCH4124/12. On 16 February 2012, the Applicant filed summons against the Respondent together with International Organisation for Migration claiming damages for property and crops. This court, on 14 December 2016, awarded damages against the Respondent. In particular, this court ruled that:

> "Accordingly, the first defendant is ordered to pay:
>
> a. US$100 000.00 damages for loss of property and vandalism.
> b. US$150 000.00 damages for unlawful interference with Dagbreek farming activities and loss of crops.
> c. Interest at the prescribed rate on the above amounts from the date of judgment to date of final payment.
> d. Cost of suit on the ordinary scale."

Aggrieved by the decision of this court, the Respondent appealed against the decision of this court on 20 December 2016. The Supreme Court, after hearing the appeal on 23 March 2018, remitted the matter to this court for quantification of damages. The Applicant alleged that her former legal practitioners wrote to the Registrar seeking the setting down of the matter for quantification. The Applicant further alleged that she did not hear from her legal practitioners

thereafter. It is her testimony that on 7 November 2025, she discovered that the matter in case number HCH4124/12 was deemed abandoned and dismissed. The Applicant was consequently forced to file the present application.

The present application was opposed by the Respondent. In opposing the matter, the Respondent raised two points *in limine*. Firstly, the Respondent averred that the present application is improperly before the court as the Applicant failed to aver prospects of success in the founding affidavit. Secondly, the Respondent, through a further point *in limine* argued that the Applicant failed to disclose critical information to the effect that the matter in case number HCH4124/12 was once set down for hearing on 27 January 2020 and that the Applicant failed to disclose that on 26 September 2025, she was advised that the matter may be dismissed if she fails to take corrective action. In her oral submissions, Ms Garakara, after interaction with the court, submitted that these points *in limine* are part of the merits.

On the merits, the Respondent argued that the Applicant failed to state the evidence of her prospects in the main matter. She further submitted that the Applicant ought to have demonstrated why she believes that she is entitled to the damages claimed. On this basis, Ms Garakara prayed that the present application is incomplete without the appropriate averment on the prospects of success.

The counsel for the Respondent further maintained that the Applicant failed to explain her period of inactivity from the date when the matter was remitted to this court up to 7 November 2025 when the matter was deemed dismissed. She submitted that the present application must be dismissed following Applicant's material non-disclosure. She contended that the Applicant failed to disclose that the matter was once set down for hearing on 27 January 2020. Ms Garakara also claimed that the Applicant did not disclose that she was called upon by the Registrar to take corrective steps on 26 September 2025 to avoid the dismissal of her matter for want of prosecution. In response to this argument, Ms Muchenje submitted that the Applicant was not able to get this information from her former legal practitioners. According to Ms Muchenje, the Applicant verily believed that her legal practitioners were pursuing the matter.

In the answering affidavit, the Applicant raised a point *in limine* against the Respondent to the effect that the deponent to the opposing affidavit did not attach proof that he was

authorized by the Respondent to depose to the opposing affidavit. This point *in limine* was eventually abandoned by Ms Muchenje through her oral submissions.

The issue that arises for determination is whether the present application meets the requirements for application for reinstatement. In determining the present application, the court must be guided by the following requirements, among others:

A. Extent of delay.

B. Explanation for the delay.

C. Prospects of success.

Reference is made to the case of Unki Mines (Pvt) Ltd v Dohne Construction (Pvt) Ltd[1]. As an explanation for the delay, the Applicant affirmed that she did not get any feedback from her legal practitioners. She additionally asserted that she verily believed that her legal practitioners were pursuing the matter. In the absence of evidence to the contrary, I have no reason to doubt her version although she could have done more to ensure that her matter is expeditiously prosecuted. I have no reason to punish her for material non-disclosure where there is no evidence that she had knowledge of undisclosed facts. In the case of *Kodzwa v Secretary for Health & Anor*[2], the court held that:

> *"*Condonation of non-observance of the rules is by no means a mere formality. It is for the applicant to satisfy the court that there was sufficient cause to excuse him from non-compliance…the court's power to grant relief should not be exercised arbitrarily and upon the mere asking, but with proper judicial discretion and upon sufficient and satisfactory grounds shown by the applicant."

I am of the view that the explanation tendered by the Applicant demonstrates that she was not in wilful default. She verily believed that her legal practitioners were prosecuting the matter. The extent of delay, in my view appears to be inordinate. The Applicant spent over five years waiting for her legal practitioners to prosecute the matter. However, this alone is not enough for

[1] SC18/23.

[2] 1999 (1) ZLR 313 (S)

the matter to be dismissed. This factor must be weighed together with other factors. Where prospects of success are strong, they may compensate the inordinate delay and explanation for the delay. Reference is made to the case of Chituku and Ors v IDBZ and Ors[3] where MUZOFA J held that:

> "There is authority that where the explanation for non-compliance with the rules is not acceptable, the applicant must show very good prospects of success in the main matter. See *Mahachi* v *Barclays Bank of Zimbabwe*[4]*."*

On the prospects of success, Ms Garakara referred the court to the case of Unki Mines (Pvt) Ltd *supra* where the court held that:

> "Prospects of success refer to the question of whether the applicant has an arguable case on appeal or whether the case cannot be categorised as hopeless. In the case of *Essop v S, [2016] ZASCA 114*, the court in defining prospects of success held that;
> "What the test for reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

In *casu*, the contention made by the respondent in relation to failure to address prospects of success in the founding affidavit has merit. The applicant ought to have explained in detail why it believes its intended appeal has prospects of success rather than merely stating so. The applicant has an obligation to satisfy the Court that once an application for condonation is granted, it has prospects of succeeding on the merits of the matter. These prospects need to be explained in depth in order to convince the Court to grant the application. The applicant failed to advance a case upon which its prospects of success can be assessed. Instead, it only referred to the grounds of appeal."

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[3] HH414/21

[4] SC 6/06.

Arguing on the prospects of success, Ms Muchenje referred the court to paragraphs 17 and 18 of the founding affidavit. In those paragraphs, the applicant averred that the Respondent's liability was established by this court and the Supreme Court. According to Ms Muchenje, what remains for determination is the *quantum* of damages. Ms Garakara submitted that the Applicant ought to have demonstrated by way of evidence the *quantum* of damages likely to be payable under such circumstances.

In my view, the question of Respondent's liability is not disputed. This was established by this court. Such liability was confirmed by the Supreme Court. The allegation that the Respondent is liable, in my view, amounts to the establishment of reasonable prospects of success. Unlike in the Unki Mines (Pvt) Ltd supra, where the Appellant relied on the grounds of appeal, the Applicant, in the present application, is relying on the Supreme Court's decision which confirmed Respondent's liability. The Applicant's case in the main matter cannot be categorised as a hopeless case. On this basis, I am of the view that the Applicant does have a realistic chance of succeeding in the main matter. The Applicant's case in the main matter is a reasonably arguable case.

I have no reason to deny the Applicant the relief sought. This will bring finality to litigation. In the circumstances, it is ordered as follows:

A. The application for reinstatement be and is hereby granted.
B. The Applicant's matter in case number HC4124/12, in which it is the Plaintiff, is hereby reinstated on the roll.
C. Applicant be and is hereby directed to set down the matter in case number HCH4124/12 within 30 days from the date of this order.
D. There shall be no order as to costs.

DEME J:…….....

Mbidzo, Muchadehama & Makoni, applicant's legal practitioners.
Mutsika Legal Practitioners, respondent's legal practitioners.